

25STCV36127 25STCV36127

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV36127 Hearing Date: June 24, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF

CALIFORNIA,çç

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14,ç

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LORENZO TORRES and ANITA TORRES,

Plaintiffs,ç

v.

AMERICAN PRESIDENT LINES, LLC, et al.

Defendants.çç

Case No. 25STCV36127

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Hearing Date: June 24, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

PLAINTIFFS' MOTION FOR TRIAL PREFERENCE

I.

Background

On December 10, 2025, Plaintiffs Lorenzo and Anita Torres

filed their complaint for personal injury alleging Mr. Torres developed

mesothelioma from direct exposure to asbestos from his time working as a

longshoreman at docks and shipyards in Southern California between 1969 and

2018. Plaintiffs also allege that Mr. Torres was exposed to asbestos performing

automotive repair work throughout his lifetime. Plaintiffs now move for trial

preference, arguing Mr. Torres is over the age of 70, has a substantial

interest in the action as a whole, and that his health is such that preference

is necessary to prevent prejudicing Plaintiffs' interest in the litigation.

Alternatively, Plaintiffs contend they present clear and convincing evidence

that Mr. Torres's illness raises a substantial medical doubt of his survival

beyond six months.

On June 9, 2026, Defendant Metalclad Insulation, LLC

("Metalclad") opposed, arguing trial preference will impede its due process

rights. On the same date, Defendant Mechanical Drives & Belting fka Los Angeles Rubber Company, Inc. ("Mechanical Drives") opposed, requesting that the court make trial setting orders and continue the hearing date of this motion to a date after Mr. Torres's deposition. On June 10, 2026, Defendants American President Lines, LLC and Matson Navigation Company, Inc. filed a conditional non-opposition. On the same date, Defendant Lykes Bros., Inc. ("Lykes Bros") opposed, arguing that Plaintiffs failed to demonstrate preference was necessary to prevent prejudicing Plaintiffs' interests in litigation.

On June

16, 2026, Plaintiffs replied.

The court finds Plaintiffs satisfied

their burden to present sufficient evidence that trial preference is necessary

to prevent prejudicing Plaintiffs' interest in the litigation. The motion for

trial preference is granted.

II.

Discussion

A.

Legal Standard

A party who is over 70 years old may petition the court for a preference

for trial date, which the court shall grant if it makes both of the following

findings: (1) the party has a substantial interest in the action as a whole;
and (2) the health of the party is such that a preference is necessary to
prevent prejudicing the party's interest in the litigation. (Code Civ. Proc., §
36, subd. (a).) An affidavit submitted in support of a motion for preference
under this subdivision may be signed by the attorney for the party seeking
preference based upon information and belief as to the medical diagnosis and
prognosis of any party. (Id., § 36.5.)

In addition, the court may grant a motion for trial preference
accompanied by clear and convincing medical documentation concluding that one
of the parties suffers from an illness or condition raising substantial medical
doubt of survival of that party beyond six months and satisfying the court that
the interests of justice will be served by granting the preference. (Code
Civ. Proc. § 36, subd. (d).)

"Upon the granting of such a motion for preference, the court shall set
the matter for trial not more than 120 days from that date and there shall be
no continuance beyond 120 days from the granting of the motion for preference
except for physical disability of a party or a party's attorney, or upon a
showing of good cause stated in the record."

(Id., § 36, subd. (f).)

"Any continuance shall be for no more than 15 days and no more than one

continuance for physical disability may be granted to any party.” (Ibid.)

B.

Analysis

Plaintiff

Lorenzo Torres is 80 years old and was diagnosed with mesothelioma in September

2025. (Plaintiffs' Index, Exh. A at ¶6.) Mr. Torres presented himself to his

pulmonologist, Dr. Ricard Huynh, reporting exertional shortness of breath and

chronic inflammatory changes in his right lung. (Id. at ¶5.) Mr. Torres

had previously undergone surgery in 2020 for hydropneumothorax management and

again in 2022 to place a catheter to drain fluid from his chest. (Id. at

¶4.) By 2025, a CT scan of Mr. Torres's chest revealed new pleural masses in

his right lung which a biopsy revealed to be malignant mesothelioma. (Id.

at ¶6.) Dr. Huynh diagnosed Mr. Torres with stage IV pleural mesothelioma of

the epithelioid subtype and recommended that Mr. Torres undergo chemotherapy

and immunotherapy to slow disease progression. (Id. at ¶8.) On January

1, 2026, Mr. Torres underwent another CT scan, which revealed masses and

lesions in his right chest that were increasing in size. (Id. at ¶9.)

Mr. Torres began immunotherapy in February 2026 and tolerated it well with mild

abdominal discomfort and abdominal ascites. (Id. at ¶10.)

Dr.

Huynh opines that “Mr. Torres suffers from advanced malignant mesothelioma of the pleura, an incurable disease. Mr. Torres’s treatment of malignant mesothelioma is ongoing, and he continues to follow with my clinic at regular intervals for palliative care. His symptoms since diagnosis have included but are not limited to shortness of breath, cough with minimal sputum production, and hemoptysis. He has followed his doctors’ recommendations and has made every effort to alleviate his symptoms and enhance his quality of life. His symptoms will continue to progress as his disease worsens, eventually resulting in his death...It is my opinion, based on my years of experience working with patients diagnosed with mesothelioma, and having personally reviewed Mr. Torres’s pathology reports and medical records as stated above, that to a reasonable degree of medical certainty, there is substantial doubt that he will survive beyond six months from the date of this declaration. This opinion is based on my training as a physician; my considerable experience treating cancer patients; my experience treating patients suffering from Mr. Torres’s specific disease of mesothelioma; my specialized knowledge regarding the typical course of this cancer in patients like Mr. Torres; my knowledge, through review of Mr. Torres’s reports, of the significance of his signs and symptoms. I hold this opinion to a reasonable degree of medical certainty.” (Plaintiffs’ Index, Exh.

A at ¶¶11, 13.)

Mr.

Torres's medical records from the time of his diagnosis show that CT scans taken in August 2025 revealed right pleural thickening, small pleural calcification, new nodules and masses in his right chest, a mass in his liver, lesions in his right chest, and small calcified nodules in his left chest. (Plaintiffs'

Index, Exh. A, TMP 9.) Specifically, the scans revealed a " 6.6 x 5.2 cm bilobed mass protruding into the right lower lobe posteriorly, adjacent to contiguous slightly more cephalad 5.7 x 3.6 cm mass eroding into the right posterior eighth rib, and a 4.7 x 4.0 cm medial right basilar mass at the level of the diaphragmatic hiatus...a 4.4 x 4.0 cm mass along the right anterior hemidiaphragm and liver dome protruding into the right middle lobe...hepatic cysts...[and] pleural calcifications." (Id.) By October 2025, Mr. Torres's

physician planned to refer him to Torrance Memorial's palliative care group and recommended that he look into his affairs and think about his end-of-life

wishes. (Id., TMCC 9.) Mr. Torres could theoretically have been a candidate for surgery, but only if he had a very good response to treatment. (Id.)

The records also show that Mr. Torres's mesothelioma was metastatic by November 2025. (Id., TMCC 2.) A CT scan from January 2026 showed multiple large masses in Mr. Torres's right chest and liver and lesions along his ribs. (Id.,

TMCC 49.) Specifically, the CT scan revealed a "large mass 89 x 64 mm" which

previously measured “69 x 67 mm” and a liver mass measuring “60 x 56 mm” that was previously “59 x 57 mm.” (Id.) By January 2026, Mr. Torres’s physician referred him back to palliative care. (Id., TMCC 43.) Mr. Torres’s most recent records from March 2026 show that he continues to undergo palliative care and that he is tolerating treatment well. (Id., TMCC 28-TMCC 32.)

In

opposition, Lykes Bros argues that Plaintiffs have not demonstrated that preference is necessary to prevent prejudicing their interests in litigation: “While Defendant does not dispute that Plaintiff is 80 years old and has a substantial interest in the action, Plaintiffs have not demonstrated that the current pace of litigation is such that Plaintiff’s interests are being prejudiced. Notably section 36(a) requires more than a showing of age and illness; it requires a showing that preference is “necessary to prevent prejudicing the party’s interest in the litigation.” (Code Civ. Proc. § 36(a), emphasis added.)...Plaintiffs have provided no evidence that the current pace of discovery or the litigation schedule is prejudicing Plaintiff’s interests.” (Lykes Bros. Opp. at p.4.)

Lykes Bros further asserts that the Mr. Torres testified in May 2026 that he is doing better, exercising, helping with household chores, and that his tumor has not grown. (Id.) Lykes Bros argues that this testimony “demonstrates

that Plaintiff's current condition does not create the kind of urgent prejudice to his litigation interests that would mandate preference under section 36(a)."

(Id.) The remaining Defendants make no substantive arguments in their opposition about Plaintiffs' burden under Code of Civil Procedure, section 36, subdivisions (a) and (d).

In

reply, Plaintiffs argue that Defendants failed to advance medical evidence to dispute his condition. Plaintiffs also argue that Defendants' arguments that they have not had an opportunity to conduct expert discovery or that preference will impair their due process rights have no merit.

Code

of Civil Procedure, section 36, subdivision (d) requires Plaintiffs to show by clear and convincing medical documentation that Mr. Torres suffers from an illness or condition raising substantial medical doubt of his survival beyond six months. Additionally, the court must be satisfied that the interests of justice will be served by granting the preference. The record here supports Plaintiffs' assertion that there is substantial medical doubt of Mr. Torres's survival beyond six months. Mr. Torres was initially diagnosed with stage IV mesothelioma. (Plaintiffs' Index, Exh. A at ¶8.) Between August 2025, Mr. Torres's CT scans showed large tumors, nodules, and lesions in his chest and

liver. (Id., TMP 9.) By January 2026, the large tumors had grown by one or two centimeters compared to August 2025. (TMCC 49.) These changes caused Mr. Torres's physicians to recommend palliative care. (Id., TMCC 43.) Although Mr. Torres's most recent medical records show that he is tolerating his current treatments well and that his symptoms are well-managed, his mesothelioma has already advanced to the point where he is receiving palliative, end-of-life care. (Id., TMCC 28-TMCC 32.) Even if Mr. Torres testified to feeling better and seeing no additional tumor growth in May 2026, Mr. Torres's disease is still advanced according to his physicians. Lykes Bros fails to advance expert testimony refuting Dr. Huynh's opinion that there is substantial medical doubt that he will survive beyond six months. Mr. Torres's advanced age coupled with the severity of his disease supports a finding that there is substantial medical doubt that he will survive beyond six months. Accordingly, the court finds that Plaintiffs meet the requirements of Code of Civil Procedure, section 36, subdivision (d).

Defendants

request accommodations for discovery and motion deadlines, status conferences, and the trial setting conference. The parties appear amenable to further discussion of the appropriate deadlines for discovery and law and motion matters prior to the submission of a proposed

trial setting order. If necessary, the court will review any jointly submitted trial

setting order and make rulings on any disputed deadlines

at the hearing on the proposed trial setting order.

III.

Conclusion

Plaintiffs'

motion for trial setting preference is granted. The parties are to meet and

confer regarding appropriate conditions for a trial setting order.

The court sets trial for October 19, 2026 at 9 a.m. The final status conference

is set for October 5, 2026 at 9 a.m. The court sets a status

conference re: trial setting order for July 15, 2026 at 9 a.m. Plaintiffs are ordered

to give notice.